(3)

NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH - I
CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF CHENNAI BENCH, CHENNAI NATIONAL COMPANY LAW TRIBUNAL, HELD AT 10.30 AM ON 06-02-2020

PRESENT: SHRI R.VARADHARAJAN, MEMBER-JUDICIAL
SHRI ANIL KUMAR B, MEMBER - TECHNICAL

APPLICATION NUMBER : CP/100 & 101/CAA/2020 IN

PETITION NUMBER : CA/922/CAA/2019

NAME OF THE PETITIONER(S) : HARITA SHEELA PVT LTD

NAME OF THE RESPONDENT(S) : HARITA TRADERS AND SERVICES PVT LTD

UNDER SECTION : SEC 230 OF CA 2013

S.No.	NAME (IN CAPITAL)	DESIGNATION / REPRESENTATION BY WHOM	SIGNATURE
	PAWAN JHABAKH		
	CHANDRA PRAKASH		
	ABISHEK RAMAN		
	ASHWIN RAMAN		
	SURAJ		
		for Petitioner Company	

ORDER

1. Counsel for the Petitioner Companies is present. Upon condonation of delay as filed by the Company Petitioners in MA/91/2020 being ordered there, these Petitions have come up before this Tribunal at the stage of 2nd motion seeking for direction of this Tribunal in relation to publication in press to be effected and notices to be issued to the authorities concerned in relation to date of hearing of the Petition and calling for the objections, if any, to the Scheme of Amalgamation (hereinafter for brevity referred to as "SCHEME").

2. From the records, it is seen that the First Motion Application vide CA/922 & 922A/CAA/2019 was filed by the Petitioner Company and according to the directions of this Tribunal by its order dated 09.09.2019 this Tribunal was pleased to dispense with the holding, convening and conducting of a meeting of the Equity shareholders of both the Transferor as well as Transferee Company of the equity shareholders as well as secured as well as unsecured creditors, in view of the fact that the consent affidavits have been placed on record in the absence of the required members as the case may be.

3. Now this petition on second motion is coming up before us for fixing a date of hearing as well as for other consequential directions in terms of provisions of Sections 230 to 232 of Companies Act, 2013 read

with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016, brought into effect and on and from 15.12.2016 and it is now hereby ordered as follows:-

(i) The date of hearing of the Petition filed by the Petitioner for the sanction of the Scheme which is fixed on **27.03.2020**.

(ii) Notice of the hearing shall be advertised in the newspapers viz., the "News Today" (Chennai edition) and "Maalai Chudar", Tamil (Chennai edition) not less than 15 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, each of the Petitioner shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through the office of the Regional Director (Southern Region), Ministry of Corporate Affairs (MCA) (b) Registrar of Companies, Chennai, MCA (c) the jurisdictional Income Tax office having jurisdiction over the respective companies indicating specifically their PAN No. in the communication, (d) Official Liquidator and other sectoral regulators, if any, who may govern the working of the respective companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in relation to their representation along with a copy of the Petition and the Annexures filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioner shall (7 days before the date of hearing of the Petition), file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Company shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances

on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on **27.03.2020** for the consideration of the approval of the Scheme.

-SD-
(ANIL KUMAR B)
MEMBER (TECHNICAL)

-SD-
(R.VARADHARAJAN)
MEMBER (JUDICIAL)